

		commonly identified as “AI hallucinations” as citations and legal arguments. Defendant was successful on that motion and the case was dismissed. (ROA 48.) The court also noted the AI hallucinations and issued monetary sanctions against Plaintiff’s counsel in the sum of \$950 payable to the court. Defendant now seeks attorney fees it claims were incurred for time expended on the AI hallucination issue, which Plaintiff’s counsel agreed to at the hearing upon an agreement on the amount of fees, and costs as the prevailing party. Of the arguments Defendant made in support of attorney fees, only those under Civ. Proc. Code § 128.5 have merit. <i>Civ. Code § 1717</i> and <i>Civ. Proc. Code § 1032</i> are not availing as no contract with attorney fees language was provided. Under <i>Civ. Proc. Code § 128.5</i>, reasonable expenses, including attorney fees incurred by a party, can be awarded for actions or tactics made in bad faith or which are frivolous. (subd. (a).) The definition of bad faith includes a lack of diligence or slacking off. (BAD FAITH, Black's Law Dictionary (12th ed. 2024).) The court finds failure to discover AI hallucinations included in a brief filed with the court is sufficient for bad faith. Additionally, including arguments which are completely without merit in the pleading, as they are AI hallucinations, qualifies as “frivolous.” As such, an award of attorney fees under <i>Civ. Proc. Code § 128.5</i> is GRANTED. The court has reviewed the billing entries provided by Defendant and finds the reasonable sum related to AI hallucinations to be \$4,110. As most of the issues in the reply brief and those presented at hearing were related to the quash arguments and not the AI hallucination issues, the court in its discretion will not award the “mixed” billing. The court will also award \$2,415 Defendant contends it incurred on the present motion. Finally, as Defendant was the prevailing party in this action, Defendant is awarded its \$545.58 in costs. (<i>Civ. Proc. Code §§ 1032 and 1033.5; Shisler v. Sanfer Sports Cars, Inc.</i> (2008) 167 Cal. App. 4th 1, 6-7.) The combined \$6,525 in attorney fees is awarded in favor of Defendant and against Plaintiff and its counsel of record. The award of \$545.58 in costs is awarded in favor of Defendant and against Plaintiff alone. <i>Defendant to give notice.</i>
2.	Arman v. Director of the Department of Motor Vehicles 26-1587263	The hearing on the Petition for Alternative Writ of Mandate, etc., filed on 7/30/26 by Petitioner Kevin Arman, is CONTINUED to October 22, 2026 at 1:30 p.m. in this Department. Petitioner has failed to demonstrate that the Petition itself, along with the 8/4/26 Order setting the hearing date for the merits of the

		Petition, were properly served on the Department of Motor Vehicles ("DMV"). Petitioner is to serve the DMV with a copy of the Petition, along with his prior <i>ex parte</i> papers, the 8/4/26 Order, his Notice of Lodgment, and a Notice of Continued Hearing on Petition which shows the new hearing date, in the same manner as service of summons per C.C.P. § 415.10 et seq. A Proof of Service reflecting compliance is to be promptly filed in this action. <i>Petitioner is to give notice of this ruling.</i>
3.	Avalos v. Summerville at Cobbco Inc. 25-1536262	Before the Court is a motion by Defendants Summerville at Cobbco, Inc. (Summerville) dba Brookdale Garden Grove and Emeritus Corporation (Emeritus) (collectively, Defendants) whereby they seek to disqualify plaintiff's counsel Stephen Hunter (Hunter) and his law firm Hunter Law, PC from serving as counsel for plaintiffs Andres A. Avalos, by and Through His Successor In Interest, Karina Jones, Gustavo Avalos, Jorge Avalos (collectively, Avalos). For the reasons set forth herein, the motion is DENIED. The Court notes initially that Defendants submitted 980 pages of exhibits at ROA 52 and failed to bookmark the document. Counsel is admonished to take the necessary steps to ensure future compliance with the Rules of Court as the Court requires strict compliance with <i>CRC, rule 3.1110 (f) (4)</i> which requires electronic exhibits to include electronic bookmarks with the links to the first page of each exhibit, and with bookmarked titles that identify the exhibit number or letter and briefly describe the exhibit. The within matter is brought on the grounds that Hunter, during the time he was a partner at the Pleiss Sitar law firm, represented Summerville and Emeritus in four elder abuse actions where they were named as defendants. The Defendants argue disqualification is appropriate under <i>California Rules of Professional Conduct, Rule 1.9</i>, which provides in part that a "lawyer who has formerly represented a client in a matter shall not thereafter represent another person in the same or a substantially related matter in which that person's interests are materially adverse to the interests of the former client unless the former client gives informed written consent." The Court has inherent power "to control in furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every manner pertaining thereto." (<i>Code Civ. Proc., §128(a)(5)</i>.) This includes the power to disqualify counsel in appropriate cases. (<i>In re Complex Asbestos Litig.</i> (1991) 232 Cal.App.3d 572, 585.) "Where the potential conflict is one that arises from the successive representation of clients with potentially adverse interests, the courts have recognized that the chief fiduciary value jeopardized is that of client confidentiality." (Flatt v. Superior Court (1994) 9 Cal.4th 275, 283.) "Thus, where a former client seeks to have a previous attorney disqualified from serving as counsel to a successive client in litigation adverse to the interests of the first client, the governing test requires